

Smt Hardei v. State of Uttar Pradesh and 4 Others

High Court of Judicature at Allahabad · Division Bench · 9 December 2024 · 2024:AHC:193048-DB · WRIT - C No. - 40724 of 2024 · **Writ dismissed; liberty to avail Section 127 remedy.**

HEADNOTE

A writ for certiorari against the licensee's letter dated 22 March 2024 and for a mandamus to decide the consumer's representation was dismissed as not maintainable on the plea of an effective alternative remedy under Section 127, with liberty to avail that remedy if not already availed. Counsel's point that the petition was delayed by 161 days was not decided. The order places Section 127 in the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt Hardei moved the Allahabad High Court against the State of Uttar Pradesh and Pashchimanchal Vidyut Vitran Nigam Ltd. She asked for certiorari to quash letter no. 8643 dated 22 March 2024 and for a mandamus to respondent no. 4 to decide her representation dated 14 August 2024. On 9 December 2024 the fresh list was revised. No one appeared for her. The Standing Counsel and counsel for the licensee were present.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

Section 127 appeal as a bar to the writ

HOLDING

The writ seeking quashing of letter no. 8643 dated 22.03.2024 and a direction to decide the representation dated 14.08.2024 was dismissed as not maintainable because an effective alternative remedy under Section 127 was available. The petitioner may avail that statutory remedy if she has not already done so. The further submission that the petition was beyond time by 161 days was not decided. ¶ 4-6

FLAG The order attributes Section 127 to the U.P. Electricity Supply Code, 2005. That section number is in the Electricity Act, 2003. Not corrected.

PRINCIPLE TAGS

alternate-remedy-section-127-appeal-bars-writ The writ for certiorari against letter no. 8643 dated 22.03.2024 and mandamus to decide the representation dated 14.08.2024 was dismissed because Section 127 was treated as an effective alternative remedy. ¶ 4-6

relegation-to-section-127-appeal-on-merits-limitation-not-examined The petitioner was left at liberty to avail the statutory remedy if not already availed. The licensee's submission that the petition was delayed by 161 days was recorded and not adjudicated. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER LETTER NO. 8643 DATED 22.03.2024 IS LIABLE TO BE QUASHED

The letter was not examined on merits. ¶ 3-5

NOT DECIDED — WHETHER RESPONDENT NO. 4 MUST DECIDE THE REPRESENTATION DATED 14.08.2024

The mandamus was not granted. The petitioner was left to the statutory remedy. ¶ 3-6

NOT DECIDED — WHETHER DELAY OF 161 DAYS BARRED THE PETITION

Counsel pointed out the delay. The Court dismissed only on the alternative remedy. ¶ 4-5

